Standard Operating Procedure (SOP)

Country Specific Requirements Poland

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Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☒ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Poland

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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Training Role(s):	GBS_GDN_PTC_CLUSTER 3
Relevant Process and Activities:	PTC

Table of contents

1 Scope and Framework 5
1.1 Scope 5
1.2 Framework 5
2 Abbreviations 5
3 Purpose & Set-Up 5
3.1 Purpose 5
3.2 General guidance 5
3.3 Roles and responsibilities 6
4 Specific requirements regarding PTC handling 7
4.1 Country Specific Requirements listed by different topics 7
5 Internal References 14
6 External References 14
7 Annex 1 17
8 Templates 18

1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, classification forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
GIF	Główny Inspektorat Farmaceutyczny (Chief Pharmaceutical Inspectorate)

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for *Poland* are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs the initial intake of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information - Forwards the case to the respective RQU for further assessment - Initiates the process of sample shipment if requested by RQU or specified in any other guidance document - Reviews the case for plausibility and closes the complaint case in complaint database - Supports the process for reimbursement management - Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Is responsible for regular KPI evaluation to get overview of complaint activities at the GBS - Supports the GBS in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested. - Sends out the Response Letters to the complainants as requested and agreed with the GBS - Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference

4.1.1 General Information

In Poland the company operates under one legal entity with distributor status:

Bayer sp. z o.o.

The main office is in Warsaw whereas Gdańsk is the location of the GBS.

4.1.2 Contact list

CQH PL - Hanna Bortkiewicz: *hanna.bortkiewicz@bayer.com*

CQU specialist PL – Krystyna Kwaśnik: *krystyna.kwasnik@bayer.com*

General e-mail CQU PL: *cqu.pl@bayer.com*

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

4.1.3 Escalation Rules

The CQH and the CQU specialist should be notified via notification in the complaint database about any complaint case referring to at least one of the following situations:

- Suspected Counterfeit Cases
- Any cases involving Health Authorities
- Cases with final risk category high or medium (via immediate action)

Escalation of non-PTC cases:

- Any non-PTCs complaints such as quantitative complaints for CH and PH products are forwarded to *customerservice.pl@bayer.com* unless it was already received by a responsible Bayer employee.
- Any medical questions about the CH products are forwarded to *informacja-medyczna.ch@bayer.com*, unless they have been received via this address.
- Any medical questions about the PH products are forwarded to *informacja-medyczna@bayer.com* unless they have been received via this address
- Any feedback/reports for AH products are forwarded to *csc_DE@elancoah.com*,
- Any reports related to repacking products at the Damco warehouse in Poland are forwarded to *cqu.pl@bayer.com* unless they have been received via this address.

Description	Assigned Roles & Document Reference
Remark: The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint: *https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list*	
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address. *pv.cee@bayer.com*	GBS
4.1.5 Product Samples Whom to contact to obtain the complaint sample which is forwarded to RQU: Country *cqu.pl@bayer.com*. **If the complaint comes from patients/consumers.** If a sample is declared available by the complainant, they are requested to return it to the pharmacy where the product was bought and provide the pharmacy details and address. **If the complaint comes from pharmacy, hospital or wholesalers.** If a sample is declared to be available by the complainant, they are requested to send it to Bayer Sp. z o.o. GBS informs warehouse employees via e-mail that a particular product return is to be expected. In the same e-mail the complainant is requested to send product to the warehouse. The sample is sent to Bayer Sp. z o.o. pharmaceutical warehouse. Standard template is added in the **Annex 2**. When the sample arrives at the warehouse a notification is sent to the GBS, which then passes the information to the CQU. Sample shipment to RQU is assigned by GBS to a CQU representative at the request of RQU. After receiving a request from RQU to send a sample, Sample Activity in IQMS is created. A CQU representative then collects the sample from the warehouse. Samples are shipped to the RQU by the CQU via courier services. Once the sample is sent out to the manufacturing/investigation site CQU sends the notification to GBS to update the case Communication Protocol/Immediate Action - Sample Activity in IQMS. If there are no photos attached to the complaint, GBS asks the CQU to provide them and attaches them in IQMS case in attachment section. IUD samples are not shipped to the RQU unless it is explicitly requested by CQH.	GBS

Description	Assigned Roles & Document Reference

Radiology samples

If the complaint is not submitted by the wholesaler, but directly by the medical center/ physician/ Bayer representative, the collection of the sample and its shipment are always consulted with CQU. If the complaint comes from a wholesaler, GBS informs warehouse employees via e-mail (**Annex 2**) that the product return is to be expected. In the same e-mail the complainant is requested to send product to the warehouse. The sample is sent to Bayer Sp. z o.o. pharmaceutical warehouse.

4.1.6 Statement letter — GBS

Acknowledgement Letter when a complaint comes in:

After a complaint is handed in, an immediate acknowledgement of receipt is sent out to the complainant. Usually, this notification covers the question whether a statement letter is required or not.

The complainant needs to get confirmation that filed complaint was received. This confirmation e-mail is in the form of notification to the client and to the Bayer warehouse that return could be sent and must be received and entered in the warehouse system. In case of authority request and a potential counterfeit contact with authorities remains on the CQU side.

Standard template is added in the **Annex 2**.

Response Letter after closing:

Standard response to the complaining client is in the form of corrective invoice reimbursing defective material. Usually receiving such invoice satisfies client, no separate letter is sent. The local rule is that reimbursement is independent from the RQU investigation result. Response to the complainant at the end of the RQU assessment containing assessment results is sent only on complainant request by the CQU. Responses to health authority requests and suspected counterfeits are always handled by the CQU, as well as for cases when client / user requests a confirmation of quality of the product batch (e.g. with AE involved)

4.1.7 RQU Contact list — GBS

For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps.

List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint:

PH: *PH RQU responsible list_HJ.xlsx*

CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*

4.1.8 List of Local Opportunities Products

n/a

Description	Assigned Roles & Document Reference
4.1.9 Data Privacy Requirements n/a	
4.1.10 Gathering additional information (including obtaining translation) In case when the CQU receives a complaint firstly by a phone, then Product Complaint Form (see Annex 1) is used to document received information. The CQU sends this form to the GBS via e-mail as soon as possible, because timeline starts when phone complaint is received by the CQU. Polish language is a hosted language in GBS Gdansk. This means that contact with complainant (written) to gather missing information regarding the complaint is done by the GBS employee responsible for the case. Complaints regarding CH products may also be received from *informacja-medyczna.ch@bayer.com* managed by Conduent, the external service provider. In case the CQU, rather than GBS, receives a complaint, CQU includes date of the first awareness of a PTC in the message subject sent to GBS.	GBS CQU
4.1.11 Reimbursement and Replacement Whether a reimbursement for a product is granted, depends on local country regulations described in detail below. **4.1.11.1 Complaints from patients/consumers** In case of complaints raise by patients/consumers, reimbursement for the product is possible only through the reverse supply chain. Patients are redirected to the pharmacy where they bought the product, to submit the complaint. In case the complainant does not return the sample, the complaint is entered in IQMS without starting the reimbursement process **4.1.11.2 Complaints by Pharmacies or Wholesalers** Pharmacies return products to the wholesaler which then return them to Bayer sp. z o.o. Reimbursement is made upon confirmation that complaint product has been returned. In Poland reimbursement process consists of the following steps: GBS receives an e-mail with the complaint and checks the correctness of data sent by the customer such as: invoice number, batch number, name of the product, date of issue of the complaint, reason of the complaint Note: If necessary, contacts the customer for clarifications or further information.	GBS

Description	Assigned Roles & Document Reference

GBS creates a record in an Excel table containing information needed for further financial processing, such as:

SKU number (SAP material number)

Business Unit (CH, PH, BT)

Date of receiving the complaint

Name of the customer

Responsible contact person: name, phone number and e-mail address

Customer complaint protocol number

Invoice number

Name of the product according to SAP database

Batch number

Quantity

Order and Delivery numbers from SAP database

Order reason code (necessary for corrective invoice request)

Reason of the complaint, date of request for sample return, date of corrective invoice request

Number and date of corrective invoice

Remark: Data like invoice number and batch number are checked in SAP system (P4S) in transaction VF03 and compared with those reported by complainant in the complaint. In case of discrepancies GBS contacts the complainant for explanations. In case where no invoice number is provided by the complainant, GBS team member checked in MB51 transaction using batch or material number for other missing data.

GBS sends an e-mail - to the complainant and to the warehouse employee informing them that product return is necessary and is expected in the warehouse.

Bayer warehouse is not allowed to accept the returned products without notification. Customer should not return the complained products without our request. Return of the complaint sample is main condition to process with the complaint further.

Warehouse contact e-mail addresses are listed below:

To: *WNDClientBayerPoland@damco.com*, *magdalena.niedzinska@maersk.com;*

Cc: *justyna.kowalska@bayer.com, malgorzata.morawska-miryn@bayer.com, cqu.pl@bayer.com*

CQU is responsible for issuing corrective invoice request. Generic address: *cqu.pl@bayer.com*

Standard template is added in the **Annex 2**.

The request for corrective invoice is issued by CQU after receiving an email from the warehouse confirming the return of the sample to Bayer (documented with goods received note)

Description	Assigned Roles & Document Reference

Remark: In case of complaints where the reason is: *missing units in original and sealed carton*, no return of goods is requested. GBS PTC Team forwards the complaint, to CQU (*cqu.pl@bayer.com*) for requesting a corrective invoice, or consultation in case of any doubts.

Intrauterine devices (IUD) via reimbursement program (physicians support program).

IUD reimbursement is handled by CQU. GBS forwards all e-mails regarding IUD's reimbursement to CQU (see chapter 4.1.14).

4.1.12 Mandatory Spot Checks for Translations — GBS

n/a

4.1.13 Exceptions and special cases

Reports regarding recall

In the event of a product recall, CQU informs GBS that the recall procedure has been initiated.

In case any e-mails regarding recall GBS forwards the e-mail to:

@ *cqu.pl@bayer.com*

@Justyna Kowalska (*justyna.kowalska@bayer.com*)

@Urszula Łubek (*urszula.lubek@bayer.com*)

@Katarzyna Baraniecka (*katarzyna.baraniecka@bayer.com*)

@Małgorzata Morawska-Miryn (*malgorzata.morawska-miryn@bayer.com*)

No complaint is created in IQMS.

Breelib complaints.

GBS forwards all complaints regarding Breelib to CQU which then processes and enters these to IQMS.

Companies with special collection requirements.

Once a complaint comes in, GBS sends an email to Urszula Łubek (*urszula.lubek@bayer.com*) and Katarzyna Baraniecka (*katarzyna.baraniecka@bayer.com*) to arrange transport (contact with ARCO - transportation service)) *magazyn@arco1.pl* and set the place and date of receipt of the complaint. In parallel, GBS sends an e-mail to the warehouse (*WNDClientBayerPoland@damco.com*,) informing them that product return is necessary and should be expected in the warehouse.

Description	Assigned Roles & Document Reference

The wholesalers are:

A-T Krotoszyn; Biedronka Jeronimo Martins Polska; Eko-Era; Elroy; Eurocash; Frega; Gamax; Gaza; Mars; Medicus; Merkury; Monika; Żabka.

The warehouses are:

Bella; Daltra; Rossman: Pyskowice, Zgierz, Grudziądz, Łódź; Ekologiczny Start Dariusz Osipiak; Raszyn Diamond Bussines Park (4864280); Sklep ZdrowieWita; Noski Noski & Kidealo; Hillwood-Magazyn.

Complaints from LIDL

In case of any complaints from LIDL, GBS informs the following persons about the need to arrange collection of the products.

@Justyna Kowalska (*justyna.kowalska@bayer.com*)

@Urszula Lubek (*urszula.lubek@bayer.com*)

@Katarzyna Baraniecka (*katarzyna.baraniecka@bayer.com*)

@Malgorzata Morawska-Miryn (*malgorzata.morawska-miryn@bayer.com*)

Complaints received from consortium partners.

In case of receiving a complaint via consortium partners (e.g., Pharmalink, Urtica) GBS does not take part in any of the reimbursement process steps.

Sample retrieval is in scope of CQU.

If additional information (e.g. photos) is needed please contact CQH deputy, email address: *justyna.kowalska@bayer.com*)

GBS enters the complaint into complaint database and notifies CQU about the case. After the closure of the case, the investigation results are also forwarded to CQU.

Complaints related to products repacked in Bayer warehouse in Poland with missing variable data

In case of any complaints related to products repacked in Bayer warehouse in Poland (Damco Poland Sp. z o.o.) we inform CQH that GBS does not register this report in IQMS, at the same time we forward the case to CQU and we do not contact the reporting party ourselves.

Description	Assigned Roles & Document Reference

4.1.14 Others

Physicians support program for IUD (Wymiana systemu: Program Zapewnienia Jakosci Stosowania Wewnatrzmacicznego Systemu Hormonalnego.)

In Poland, physicians participate in the quality assurance program which allows them to request reimbursement. Physicians report to the sales representative the UI or PTC issue with inserting IUD. If the case requires IQMS entry, GBS logs the case to the system. IUD reimbursement topic is handled by CQU.

Compliance with regulatory requirements of Polish Health Authorities.

Each complaint, whether requiring reimbursement, not requiring reimbursement, or requiring a batch quality confirmation, is recorded in an Excel spreadsheet located on the SharePoint (go/ptcops). GBS fills out the spreadsheet in accordance with instructions provided therein. The Excel spreadsheet is maintained to keep record of all PTC, as required by Polish Health Authorities.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective date
1	New document	2020-03-13
2	# Chapter 4.1.3 Escalation rules updated. Added Breelib complaints and escalation of non-PTC cases. # Chapter 4.1.5 Sample handling process updated. Standard template added in the Annex 2 and an information about IUD sample shipment. # Chapter 4.1.6. Statement letter updated. Template in country specific languages are added as a protected annex to the Country Specific SOP. Added information about complaints which come from Medical Information. # Chapter 4.1.10 Described how to use Annex 1 for CQU to obtain complaint by phone. # Chapter 4.1.10 Gathering additional information updated. Added information about Conduent the external service provider. Added information about complaint which are firstly receive by CQU/CQH. # New chapter 4.1.12 Mandatory Spot Checks for Translation. Remark added that this chapter is not applicable for Polish complaints. # Chapter 4.1.11 Reimbursement and Replacement updated. Information about Annex 2 and Annex 3 added. Contact e-mail addresses updated. Remark added about handling complaints when missing units in original sealed carton is reported. IUD reimbursement added. # Chapter 4.1.13 Exceptions and special cases added. # Chapter 4.1.14 Others added. # Annex 1 (Product Complaint Form) added. # Annex 2 changed.	2021-12-16
3	# Chapter 4.1.13 Exceptions and special cases. Complaints received from Pharmalink. # Annex 2 updated.	2022-04-06
4	# Whole document text - naming changed = Shared Service Center to Global Business Services, SSC to GBS # Whole document text - text mistakes and grammar corrections # Chapter 4.1.3 Notification rules updated – AE only cases reported directly via replacement form - part deleted # 4.1.6 Medical Information acknowledgment letter removed # 4.1.6 and #4.1.14 Safety statement renamed into confirmation of quality of product batch # 4.1.10 Verbal (phone calls) method of gathering information removed # 4.1.11.2 No product type is defined when requesting a product return to warehouse - remark for it deleted	2023-11-27

	# 4.1.11.2 Role of GBS supporting team added. Annex 3 no longer viable for PTC Team # 4.1.13 Paragraph with processing complaints from consortium partners updated # 4.1.14 IUD exchange programme workflow revised (PV role removed) # Annex 3 removed	
5	# Whole document text - naming changed = Dev@Com to IQMS # Chapter 4.1.3 Escalation rules updated. Added complaints related to repacked and escalation of non-PTC cases. # Chapter 4.1.5 Sample Activity will be register in IQMS based on RQU request # Chapter 4.1.13 Added procedure for special cases when products are repacked in Bayer warehouse in Poland and variable data are missing # Roles and responsibilities updated based on SSC-PTC-SOP-001 v.6.0 # Section 4.1.2 Reference to QINT SharePoint updated # Section 4.1.3 Escalation rules: escalation on initial risk category removed, escalation regarding final risk categories changed to high and medium according to SSC-PTC-SOP-001 v.6.0. Reference to QINT SharePoint updated. # Section 4.1.7 Updated references to global lists with RQU names for PH and CH # Section 4.1.13 List of companies with special collection requirements updated. # Section 4.1.13 Procedure regarding recall updated. # Section 4.1.11 Unit responsible for issuing corrective invoice request changed to CQU. #PV address updated to *pv.cee@bayer.com* # e-mail address to forward reports for AH products changed from *weterynaria@elancoah.com* to csc_DE@elancoah.com	See cover page

7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

8 Templates

Annex 2 - Standard template for e-mail to the wholesaler and to the Bayer warehouse


Annex2

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Hanna Bortkiewicz (hanna.bortkiewicz@bayer.com) Approver - Content 11-Dec-2025 13:57:36 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	katarzyna mazur kominek (katarzyna.mazur-kominek@bayer.com) Approver 17-Dec-2025 14:29:54 GMT+0000